ANNEXURE – 'A'

BOND BY THE CANDIDATE AT THE TIME OF TAKING ADMISSION INTO PG DIPLOMA/ DNB/ DrNB/ MD/MS/MDS / DM/ MCHCOURSE IN GOVERNMENT INSTITUTIONS OR MEDICAL COLLEGES OF THE STATE OF ODISHA(OR ANY OTHER COURSE AS MAY BE NOTIFIED)

KNOW ALL MEN BY THESE PRESENTS THAT WE..... son/ daughter/ wife of..... Aged about..... years resident of..... in the district..... at present admitted..... in ..... Medical College, ... (here in after called the Principal Obligor) and Shri/ Smt..... aged about..... years daughter/ son/ wife of..... Resident of..... in the district of..... at present employed as..... in the Office / Department of .....and Shri/ Smt..... Daughter/son/wife of..... aged about .....years of resident of ..... in the district of..... at present employed as ..... in the Office / Department of..... (hereinafter called "the surety") do here by jointly and severally bind ourselves and our respective heirs, executors and administrators and legal representative to pay the Governor of Odisha, his successors and assigns (hereinafter called "the Government") on demand, the amount equivalent to double the amount of stipend/salaryfor three yearsof study that the Government incurs on account of a candidate having been placed on PG DIPLOMA/ DNB/ DrNB/ MD/ MS/ MDS / DM/ MCH Course till completion of the said course.

WHEREAS the Above Principal Obligor is placed on admission into PG DIPLOMA/ DNB/ DrNB/ MD/ MS/ MDS / DM/ MCH Courseand admissible by the Government;

AND WHEREAS for better protection of the healthcare of the Government in the State, the Principal Obligor has agreed to execute this bond with such condition as hereunder written;

AND WHEREAS the said surety has agreed to execute this bond as surety for the discharge of the above burden of the amount equivalent to double the amount of stipend for three years of study by the Principal Obligor.....

NOW THE CONDITION OF THE ABOVE WRITTEN BOND is that in the event of successful learning and completion of PG DIPLOMA/ DNB/ DrNB/ MD/ MS/ MDS / DM/ MCH Course and obtaining registration thereof the Principal Obligor.....is to render two years of service in the State of Odisha. In case the Principal Obligor fails to comply due to any reason, the Principal Obligor is liable for refund of an amount equivalent to double the amount of stipend/salaryreceived for three years of study,to the Government of Odisha.

Appointment under the State Government after successful completion of PG DIPLOMA/ DNB/ DrNB/ MD/ MS/ MDS / DM/ MCH Course shall mean and include regular

appointment through OPSC or Adhoc appointment or Contractual appointment etc. Once an appointment (any one of the above type) is given, the candidate shall have to join within 30 days from the date of receipt of the appointment order failing which, he /she will be required to pay the amount as calculated above.

Further in the event of leaving the course due to any reason before the completion of PG DIPLOMA/ DNB/ DrNB/ MD/ MS/ MDS / DM/ MCH Course, leading to lapse of a seat, the Principal Obligor.....is liable for refund of an amount of `.10.00 lakhs (Rupees ten lakhs) and all the stipend or salary received till the date of leaving the course, to the Government of Odisha.

AND UPON in Principal Obligor.....

and..... the surety (ies) as aforesaid making such refund, the above written obligation shall be void and of no effect, otherwise it shall be and remain in full force and virtue and it is agreed and declared by the Principal Obligor and the surety (ies) that in the event of default without prejudice to other remedies that the Government may adopt, the Government shall be entitled to recover the aforesaid amount from the Principal Obligor and the Sureties jointly and severally in the form of public demand under the Odisha Public Demand Recovery Act, 1962.

Save and except death, permanent disability or selection for higher study under no circumstances, the Principal Obligor can forgo the appointment and posting and if it so happens he shall be liable to refund the money amounting to the amount equivalent to double the amount of stipend/salary for three years of study.

PROVIDED that the liability of the surety hereunder shall not be impaired or discharged by reason of time being granted by the Government or by any forbearance, act or omission on the part of the Government or any person authorized by it (wherever with or without the consent or knowledge of the surety nor shall it be necessary for the Government to sue the said Principal Obligor before suing the above bounden surety..... on any of them for the amount due hereunder.

Provided further that, in case of selection for higher study this bond will be seized to be operative till the study is completed and will be deemed to be in force on the date of completion of higher study and accordingly, all the above mentioned clauses will be in operation for all purposes.

NB: a. The Higher study shall mean pursuing any course after MBBS/BDS like Post graduation, Superspecialty or post-doctoral courses which are included in the Regulations of MCI/NMC. Higher study shall not include any residency or fellowship course outside state.

b. Participation in selection process for residency / contractual / regular faculties for Medical Colleges inside the state of Odisha under the State Government or PSU shall be allowed and the certificates shall be released.

c. Any service or training after PG (Senior Resident / Tutor / Faculty

in Medical Colleges/ Medical Officer in PSUs or other departments) inside state under state Government shall be counted towards post PG Bond service.

In witness to the written bond and to all term and conditions hereinbefore contained we have signed hereunder this..... Day of..... 20...

Signed and delivered by the Principal Obligor

Surety: 1. Signature

Name & Address

Surety: 2. Signature

Name & Address

Signed and delivered by the surety above named

In presence of witnesses

Witness: 1. Signature

Name & Address

Witness: 2. Signature

Name & Address

ACCEPTED

for and on behalf of the GOVERNOR OF ODISHA

Dean & Principal,

..... Medical College.

APPENDIX- 1

AFFIDAVIT

(Before the Judicial Magistrate First Class)

(For candidates selected for higher study immediately after completion of Post Graduation)

I Dr. ..... aged about ..... son/daughter of Sri ..... residence of ....

do here by solemnly affirm and state as follows:-

1. That I was admitted to the PG DIPLOMA/ DNB/ DrNB/ MD/ MS/ MDS / DM/ MCH Course (strike out which is not applicable) in the subject ..... in the ..... college in the academic session ..... / .....
2. That I had executed a bond with bond condition to serve the state for two years after completion of the course failing which I will be liable to pay a monetary penalty equivalent to double the amount of stipend/ salary received by me during the period of three years of study.
3. That I am aware that in case of exigency I may be deployed in any post as and when required.
4. (tick which one is applicable from the following)
   a. That after the completion of my course on Dt. ..... I am again selected for higher study in ..... subject in ..... Medical College, in the academic session ..... / .....
   b. That I want to participate in the selection process for ..... and if I am not selected I will submit all my documents received to the authority and continue in the bond service to fulfil the conditions of bond.
5. That the higher study course is a ..... years course and I will complete it in the year ..... and that this course satisfies the conditions mentioned in Bond format and Resolution.
6. That I undertake that after completion of the higher study course I will serve the state for two years and in case of default all the conditions of the bond executed earlier will be applicable to me including the monetary penalty.
7. That this affidavit is made for submission before the concerned authority as and when required.
8. That, the contents of this affidavit are true to the best of my knowledge and belief.

DEPONENT

(NB: To be typed on appropriate stamp paper)